

SENATE No. 422

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relating to seizure disorders in schools.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>6/16/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>6/23/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/22/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/23/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>8/13/2025</i>

SENATE No. 422

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 422) of Patrick M. O'Connor for legislation to relate to seizure disorders in schools. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relating to seizure disorders in schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 71 of General Laws is hereby amended by inserting after section 98
2 the following section:-

3 Section 99. Seizure-Safe Schools

4 (a) The school committee of each public school district and the governing body of each
5 private and parochial school or school district shall have at least one school employee at each
6 school who has met the training requirements necessary to administer or assist with the self-
7 administration of:

8 (1) A seizure rescue medication or medication prescribed to treat seizure disorder
9 symptoms as approved by the United States Food and Drug Administration and any successor
10 agency; and (2) A manual dose of prescribed electrical stimulation using a Vagus Nerve
11 Stimulator (VNS) magnet as approved by the United States Food and Drug Administration and
12 any successor agency.

(b) For those assigned the duties under subsection (a), training shall include instructions in administering seizure medications and manual vagus nerve stimulation, as well as the recognition of the signs and symptoms of seizures and the appropriate steps to be taken to respond to these symptoms.

(c) The presence of a registered nurse employed full-time by a school who assumes responsibility for the administration of seizure medications and the administration oversight of vagus nerve stimulation shall satisfy the requirements of subsections (a) and (b).

(d) Every public school shall provide training to principals, guidance counselors, teachers and other relevant school personnel with direct contact and supervision of children, including bus drivers and classroom aides, on the recognition of the signs and symptoms of seizures and the appropriate steps for seizure first aid.

(e) Any training programs or guidelines adopted by any state agency for the training of school personnel in the health care needs of students diagnosed with a seizure disorder shall be fully consistent with training programs and guidelines developed by the Epilepsy Foundation of America and any successor organization. Notwithstanding any state agency requirement or other law to the contrary, for the purposes of this training, a school district shall be permitted to use any adequate and appropriate training program or guidelines for training of school personnel in the seizure disorder care tasks covered under this section.

(f) Prior to the administration of a seizure rescue medication or medication prescribed to treat seizure disorder symptoms, the school shall receive from the student's parent or guardian a written authorization to administer the medication at school; a written statement from the

student's health care practitioner, which shall contain the following information: (i) student's name; (ii) name and purpose of the medication; (iii) prescribed dosage; (iv) route of administration; (v) frequency that the medication may be administered; and (vi) circumstances under which the medication may be administered; and the prescribed medication in its unopened, sealed package with the label affixed by the dispensing pharmacy intact.

(g) The parent or guardian of each student diagnosed with a seizure disorder shall collaborate with school personnel to create a seizure action plan, which shall mean a written, individualized health plan designed to acknowledge and prepare for the health care needs of a student diagnosed with a seizure disorder; provided that the department of public health may issue guidelines for the development and content of seizure action plans.

(h) The seizure action plan required in subsection (g) shall be kept on file in the office of the school nurse or school administrator and shall be distributed to any school personnel or volunteers responsible for the supervision or care of the student.

(i) The written authorization required under subsection (f) for the administration of any of the medications listed in subsection (a) shall be effective for the school year in which it is given and shall be renewed each following school year upon fulfilling the requirements of subsection (f) through (h) of this section.

(j) The requirements of subsections (a) through (i) shall apply only to schools that have a student enrolled who has a seizure disorder or has a seizure rescue medication or medication prescribed to treat seizure disorder symptoms approved by the United States Food and Drug Administration and any successor agency prescribed by the student's health care provider.

(k) Every public school shall provide an age-appropriate seizure education program to all students on seizures and seizure disorders. The seizure education program shall be consistent with guidelines published by the Epilepsy Foundation of America and any successor organization as well as any guidance developed by the department of public health.

(l) A school district, school district employee, or agent, acting in good faith and in substantial compliance with the student's individual health plan and the instructions of the student's licensed health care professional, who provides assistance or services under this section shall not be liable in any criminal action for civil damages in his or her individual, marital, governmental, corporate or other capacity as a result of the services provided under this section to students with epilepsy or seizure disorders.

SECTION 2. This Act may be cited as the Seizure-Safe Schools Act.

SECTION 3. This Act shall take effect one year from enactment of the legislation.